

Under California Code of Civil Procedure § 704.770(a), the motion must be heard withing 45 days after the application is filed, unless there is good cause for a later hearing.

“Upon the filing of the application by the judgment creditor, the court shall set a time and place for hearing and order the judgment debtor to show cause why an order for sale should not be made in accordance with the application. The time set for hearing shall be not later than 45 days after the application is filed or such later time as the court orders upon a showing of good cause.”

Collect Access asserts that it has satisfied the requirements under Code of Civil Procedure sections 704.750(a) and 704.770(a) as the Notice of Levy as reordered on October 25, 2024, and e-mailed to counsel for the Judgement Creditor Assignee on October 29, 2024. In regard to timing, Collect Access asserts that this motion’s date was the earliest available date set for the court and thus asserts good cause for a hearing date after the 45-day window.

III. ANALYSIS

Here, the Court finds that the Judgement Creditor Assignee has satisfied the requirements under Code of Civil Procedure sections 704.750(a) and 704.770(a), provided updated information on how Collect Access became the judgment assignee, and provided evidence of the difference of names the Judgement Debtor.

No opposition was filed. A failure to oppose a motion may be deemed a consent to the granting of the motion. (Rule of Court, Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).

IV. CONCLUSION

Based on the foregoing, the unopposed motion, the judgment creditor assignee has met its burden. However, the Court will hear oral arguments from the parties. The Court will prepare the formal Order.

Calendar Line # 2

Case Name KYC Investment Group, a California Corporation vs Kwok Chan et al

Case No. 19CV358368

Motion for Attorney’s Fees and Cost

I. BACKGROUND

This case stems from a November 8, 2019, Complaint involving eight causes of actions, including fraud. (Complaint). Plaintiff KYC Investment Group (“KYC”) alleges that Defendant Kwok Chan recorded a deed of trust on a property as the CEO of KYC and fraudulently filed false statement of information with the Secretary of State. Plaintiff filed a First Amended Complaint on April 23, 2024. On April 25, 2024, parties filed a notice of settlement. Parties field a stipulation extending time to bring the matter to trial on November 15, 2024, on the grounds that the conidium had not sold and the settlement had not been finalized and extended the time under Code of Civil Procedure section 583.310 to May 8, 2025.

On June 23, 2025, the Honorable Shella Deen granted an order shortening time to hear Plaintiff’s motion to enforce settlement pursuant to Code of Civil Procedure section 664.6 and attorney’s fees and costs. On September 9, 2025, Judge Deen granted the motion to enforce the settlement. The motion for fees and costs was denied without prejudice, noting that “specific information as to the nature and extent of time spent is required, rather than a one sentence estimation.” (Order filed October 15, 2025).

On December 23, 2025, Plaintiff filed this motion for attorney's fees and cost. The motion accompanied by a proof of service indicating electronic mail service on defendant's counsel on that same day.

The Court has carefully reviewed the moving papers, including: Plaintiff's notice of motion (totaling 3 pages); memorandum of points and authorities (totaling 3 pages); Declaration of Dek Ketchum and attached Exhibits 1-3 (totaling 39 pages); Opposition to the motion (totaling 8 pages); Reply brief (totaling 8 pages); Declaration of Ketchum in support of the Reply brief (totaling 2 pages); proofs of services; and the pleadings.

II. LEGAL STANDARD

Code of Civil Procedure section 664.6 provides in relevant part:

“(a) If parties to pending litigation stipulate, in a writing signed by the parties outside the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

(b) For purposes of this section, a writing is signed by a party if it is signed by any of the following:

(1) The party.

(2) An attorney who represents the party.

(3) If an insurer is defending and indemnifying a party to the action, an agent who is authorized in writing by the insurer to sign on the party's behalf. This paragraph does not apply if the party whom the insurer is defending would be liable under the terms of the settlement for any amount above the policy limits.”

Strict compliance with the statutory requirements is necessary before a court can enforce a settlement agreement under this statute. (*Sully-Miller Contracting Co. v. Gledson/Cashman Construction, Inc.* (2002) 103 Cal.App.4th 30, 37). To enforce a written settlement agreement under Code of Civil Procedure section 664.6, the following three elements must be met: (1) the parties must have come to a meeting of the minds on all material points; (2) there must be a writing that contains the material terms of the agreement; and (3) the writing must be signed by the parties. (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 797-98).

III. ANALYSIS

On September 9, 2025, Judge Deen granted the motion to enforce the settlement, the written order was entered on October 15, 2025. (Exhibit 1; Declaration of Ketchum). At that same hearing, the court had denied without prejudice the request for attorney's fees and cost for lack of itemization and proof. Plaintiffs' present motion seeks attorneys' fees and costs. (Motion, p. 2).

A. ATTORNEYS' FEES

Here, the Court consider section 11 of the Settlement Agreement and Mutual General Release (“Settlement Agreement”), which states as follows:

11. Attorneys' Fees and Costs

If any legal action or other proceeding is brought as a result of any controversy arising from or with respect to the provisions of this Agreement, the prevailing party shall be entitled to recover reasonable attorneys fees and other costs incurred in the action or proceeding, in addition to any other relief to which the prevailing party may be entitled. (p. 4 of the Settlement Agreement).

Plaintiffs' counsel seeks attorney's fees that is comprised as follows: (1) \$12,777.00³ in attorney's fees for 26.9 hours of work at an hourly rate of \$475.00 for attorney Ketchum and includes 2.7 hours for preparing this motion. (Declaration of Ketchum ¶ 4; Exhibit 2); and (2) \$805.00 in attorney's fees for 2.3 hours of work in preparing a reply brief at the hourly rate of \$350.00 for attorney Ketchum. (Reply brief, at p. 2); (3) any additional time associated with the upcoming court appearance on this matter. (*Id.*); and (4) additionally, plaintiffs' counsel seek \$1,500.00⁴ for 3.3 hours of work at the hourly rate of \$480.00 for attorney Kurt Seibert that Plaintiff's counsel hired to handle an ex parte hearing on this matter in June 2025. (*Id.*, at ¶ 4; Exhibit 3).

Defendants oppose the motion on four main grounds: (1) the plaintiffs have not met its burden of proof. (Opposition, p. 2). Defense argues that billing records do not automatically establish reasonable or necessary billing. Defendants argue it has acted in good faith in attempting to sell the property and that it has informed plaintiffs' counsel of updates; (2) the settlement agreement does not authorize all the requested fees and only reasonable fees are recoverable. (*Id.*, at p. 3). Defendant challenges many entries over several months for the following: client communications, settlement negotiations, trust revisions, internal conferences, post-order drafting; and preparing this fee motion. (*Id.*); (3) the fees are excessive including (a) 5.1 hours for drafting motions; (b) 2.2 hours to revise ex parte application; (c) 1.9 hours for further edits; (d) 1.8 hours to "finalize"; (e) "numerous telephone conferences"; (f) "multiple emails"; and (g) "numerous trust revisions." (*Id.*, at p. 4). Defense challenges these entries as excessive conferencing, clerical work, repetitive editing, inefficiency, in sufficiency of proof, and inadequacy by having to file a fee motion twice for failing to provide sufficient proof in the first motion which was the basis for the court's denial without prejudice. (*Id.* at 4-5); and (4) the \$1,500.00 in attorney's fees for Kurt Seibert on the grounds that the fees were unreasonable and unnecessary. (*Id.*, at p. 5-6).

In its reply brief, plaintiffs' counsel does not contest that the defendants have not been diligent in attempting to sell the property at issue and claims that the delays in the sale is not the basis for the motion for attorney's fees, thus the contention that the plaintiff has not met its burden on that ground is irrelevant. (Reply brief, p. 3). Plaintiff argues that the defendant concedes that plaintiffs are entitled to reasonable attorney's fees and a blanket objection that generalized categories such as client communications, settlement negotiations, and such fails to assert a factual basis to challenge the time entries. (*Id.*). Plaintiff argues that the hours sought are not excessive in light of its attempts to resolve the matter and work through the defendants refusal to sign the trust agreement. (*Id.*, at p. 5). As to attorney Seibert's fees, plaintiffs' counsel asserts that it had no choice to seek an ex parte application for an order shortening time was necessary as the motion was set for a time beyond the five-year statute under Code of Civil Procedure section 583.310. Plaintiffs' counsel emphasizes that he requested an extension, but did not receive a response, and thus had no alternative but to see the motion, that Judge Deen granted. Plaintiffs' counsel asserts that Mr. Seibert's proximity to the courthouse was also reasonable and reduced fees as it reduced at least two hours of commute time and fees. (*Id.*, at p. 5-6).

Upon review, the court will GRANT attorneys' fees, but DENIES the full amount requested by the plaintiffs' counsel. The Court exercises its discretion to reduce 12.6 hours for duplicate work, specifically on the ex parte application when another counsel was hired to handle the same application, excessive, and unreasonable for activity from June 2, 2025 to November 10, 2025. The Court will award the requested hourly rate for attorney Ketchum at \$475.00. The Court GRANTS one (1) hour of work for this motion at the requested hourly rate of \$475.00 and

³ Plaintiffs' counsel seeks \$12,777.00 for 26.9 hours of work at an hourly rate of \$475.00 which comes to \$12,777.50, but the Court will consider the requested amount by the plaintiffs' counsel as the reduced figure is used throughout, including the total sum for all requested attorneys' fees in this matter.

⁴ Plaintiffs' counsel seeks \$1,500.00 for 3.3 hours of work at an hourly rate of \$480.00 for the work of Kurt Seibert which comes to \$1,584.00, but the Court will consider the requested amount by the plaintiffs' counsel as the reduced figure is used throughout, including the total sum for all requested attorneys' fees in this matter.

awards an hour (1) of work in preparing the reply brief at the hourly rate of \$375.00 as set forth in the Declaration of Ketchum. The Court GRANTS the request for \$1,500.00 in attorney's fees for Kurt Seibert.

The Court DENIES the request for further fees that was expended on appearances for the hearing as prospective.

Thus, the Court GRANTS \$8,810.00 in total attorneys' fees in this matter.

B. COSTS

Plaintiffs' counsel seeks to recover \$120.00 for filing the prior motion to enforce the settlement agreement and this present motion for fees and cost. The defense objects to costs associated with this present motion as the plaintiffs' counsel's failure to set forth an adequate basis for fees and cost in the prior motion, and thus incurring unnecessary costs.

The Court notes that the motion for fees and costs could have been addressed with the prior motion as Judge Deen denied the request for attorney's fees and cost without prejudice for lack of itemization and proof.

However, the Court exercises its discretion and will GRANT the request for costs in the amount of \$120.00 for the filing costs of the motion to enforce the settlement and this present motion for fees and cost.

C. SANCTIONS

It is uncontested that the Honorable Deen previously denied the motion for sanctions on October 15, 2025.

However, plaintiffs' counsel avers that sanctions are appropriate in this matter based on Mr. Chan's refusal to sign the trust after the settlement agreement was executed and plaintiffs worked in good faith to accommodate his concerns. (*Id.*, at p. 3-4). Plaintiffs' counsel avers that due to the defendant's refusal to comply with the settlement agreement, plaintiffs had to extend time and costs to seek a motion to enforce and recover fees and cost.

Defendants oppose any sanctions as unwarranted. Defendant emphasizes that did not make any finding that the defendant acted in bad faith. (Opposition, p. 3). Thus, defendant asserts that the plaintiffs' counsel characterization of unjustified conduct by the defendant is not a court finding as a basis for sanctions. (*Id.*).

The Court, finds that the request for sanctions has previously been addressed and denied. Further, there is no showing of new facts to establish grounds for sanctions. Thus, the motion for sanctions is DENIED.

IV. CONCLUSION

Based on the foregoing, the Court GRANTS total attorneys' fees in the amount of \$8,810.00

The Court GRANTS costs in the amount of \$120.00.

The request for sanctions is DENIED.

The Court will prepare the formal Order.

Calendar Line # 3
Case Name Kenneth Jocewicz et al vs FCA US, LLC et al
Case No. 20CV373487
Motion Attorney's Fees and Cost
<u>I. BACKGROUND</u> A. BRIEF FACTUAL BACKGROUND This case stems from a Complaint under the Song-Beverly Act that was filed on November 13, 2020 regarding Plaintiffs Kenneth and Linda Jocewicz's (collectively "Jocewicz") 2011 Chrysler Jeep Dodge, vehicle identification number 2C3CA5CG9BH531183 ("Subject Vehicle"). (Complaint). The parties filed a notice of settlement on May 16, 2023, as Plaintiffs Jocewicz accepted the defense offer to compromise for \$60,000.00 under Code of Civil Procedure section 998 on May 15, 2023. (Exhibit 3, Baker Declaration). On July 31, 2024, the Honorable Shella Deen authorized the joint stipulation to <i><u>dismiss the matter with prejudice</u></i> and retain jurisdiction under Code of Civil Procedure section 664.6. This Order was filed on August 6, 2024. B. RELEVANT PROCEDURAL BACKGROUND Before the court is Plaintiff Jocewicz's motion for attorney's fees, costs and enhancer that was filed on December 10, 2025. The motion was accompanied by a proof of service indicating electronic mail service to defense counsel on that same day. Plaintiff seeks an Order awarding her attorney's fees in the amount of \$49,565.50; costs in the amount of \$4,815.02; a 1.35 multiplier in the amount of \$17,347.93; and additional anticipated fees in the amount of \$4,000.00 on the grounds it is the prevailing party. Defendant FCA US, LLC ("FCA") filed an opposition papers on July 31, 2026. The Court has carefully reviewed the following: Plaintiff's notice of motion and memorandum of points and authorities (totaling 12 pages), Declaration of Angel M. Baker and attached Exhibits 1-3 (totaling 19 pages); Declaration of Payam Shahian and attached Exhibit 1 (totaling 35 pages); Plaintiff's exhibit list (totaling 2 pages); Plaintiff's request for judicial notice totaling 6 pages); Defendant's opposition (total 21 pages); Declaration of Colin P. Cronin in support of defendant's opposition and attached Exhibits 1-7 (totaling 61 pages); Reply brief (totaling 12 pages); defendant's objection to evidence in the Declaration of Shahian (totaling 17 pages); defendant's objection to evidence in the Declaration of Baker (totaling 6 pages); plaintiff's reply brief for attorney's fees (totaling 10 pages); plaintiff's reply to defenses objections to the Declarations of Shahian and Baker (totaling 3 pages); plaintiff's objection to evidence in the Declaration of Cronin (totaling 9 pages); Declaration of Baker in support of the plaintiff's reply brief and attached Exhibits 1-2 (totaling 28 pages); proofs of services; and the pleadings. <u>II. PROCEDURAL ISSUES</u> A. TIMELINESS OF THE MOTION California Rule of Court, Rule 3.1702(b)(1) provides: "A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court-including attorney's fees on an appeal before the rendition of judgment in the trial court-must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case[.]" Further, "Unless a statute or rules 8.108, 8.702, or 8.712 provides otherwise, a notice of appeal must be filed on or before the earliest of: (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment." (Cal. Rule Court, rule 8.104(a)(1)).